

24STCV09259 24STCV09259

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C09%2F14%2F2026

Source SHA-256: 3086f2195b8b80f5ae459573a0d0da4502d06c31e0d49efa28627a5eb256ced4

Case Number: 24STCV09259 Hearing Date: September 14, 2026 Dept: 309

Superior

Court of California

County of

Los Angeles

DEPARTMENT 309

TENTATIVE RULING

DION M.

PERONNEAU

vs.

KEITH JACKSON., et al.

Case No.: 24STCV09259

Consolidated with Case No.: 24STCV19183

Hearing Date: September 14, 2026

Plaintiff's motion for trial preference is DENIED.

On 4/12/2024, Plaintiff Dion M.

Peronneau (Plaintiff) filed suit against Keith Jackson, Mason Shayan, and Ali Shayan, alleging: (1) nuisance; (2) trespass; and (3) negligence.

On 8/20/2026, Plaintiff moved for trial preference.

Discussion

Plaintiff moves for an order granting calendar preference pursuant to California Code of Civil Procedure (CCP) section 36(a) and (e).

CCP section 36(a) provides for trial preference where: (1) the party is over 70; (2) they have a substantial interest in the action; and (3) their health is such that preference is necessary to avoid prejudice. The standard for granting preference under § 36(a) is a “low threshold” (Fox v. Superior Court (2018) 21 Cal.App.5th 529). The Court in Fox held that a plaintiff need not show they are “likely to die” before trial; rather, they must only show that their health makes preference necessary to protect their interest.

CCP section 36(e) provides for discretionary preference where the interests of justice would be served by an expedited trial setting.

Here, Plaintiff submitted evidence that she is 72 years old, that she is the sole Plaintiff and owner-occupant of the property at issue, and that her house remains partially uninhabitable:

The home remains partially uninhabitable as of the filing of this Motion. It does not have working heat. It does not have working air conditioning. Open floor and wall cavities continue to release dust and silt from beneath the structure into the interior living space. Mold has grown on bathroom walls and floors near the shower and drain, and sludge has been observed emerging from the bathroom drain. Plaintiff is unable to open her windows without inviting additional dust intrusion. (JHK Dec., ¶ 11; Peronneau Decl., ¶¶ 6–10.)

However, Plaintiff does not submit a declaration from her treating physician (Alpha Opp., p. 4:20-21), “competent medical evidence of a diagnosable injury” (Stewart Opp., p. 3:9), conditions that are “life-threatening” (Alpha Opp., p. 6:10), or a showing that she “may not

survive to trial.”

As such, the Court finds an insufficient basis to conclude that the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (CCP § 36, subd. (a).)

Based on the foregoing, Plaintiff's motion for trial preference is denied.

It
is so ordered.

Dated:
September , 2026

Hon. Jon R. Takasugi

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order.

If
the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.